

**IN THE 30TH JUDICIAL CIRCUIT OF WEBSTER COUNTY, MISSOURI
CIVIL CIRCUIT DIVISION**

TRENTON R. OVERHUE, and
NSI, A.1, LLC,

Plaintiffs,

v.

Case No. _____

GAIL PEAK BROWN,
Proposed service at:
1150 Westview Pl.
Marshfield, Missouri 65706

Defendant.

VERIFIED PETITION

1. Plaintiffs Trenton R. Overhue (“Overhue”) and NSI, A.1, LLC (“NSI A1”) bring this action against Defendant Gail Peak Brown (“Brown”) for publishing false factual implications that temporary generator testing at the digital-infrastructure facility on Rifle Range Road in Webster County, Missouri, represented the Facility’s ordinary, continuing method of operation. Plaintiffs also allege Brown’s subsequent September 24, 2026, publication concerning supposed Flock cameras as additional context for her public descriptions of the Facility.
2. Brown’s publications injured Overhue’s professional reputation and NSI A1’s business reputation, goodwill, and commercial relationships by portraying the persons and business identified with the Facility as responsible for enduring generator noise and exhaust affecting neighboring properties.
3. Exhibits A (A-1 through A-6) and B (B-1) reproduce the July 23 posts and responses; Exhibit C (C-1 through C-2), the July 23 meeting agenda; and Exhibit D (D-1 through D-8), the September 24 camera materials.

PARTIES

4. Plaintiff Trenton R. Overhue is an individual engaged in developing and managing digital-infrastructure facilities in Missouri.

5. His professional reputation for honest, competent, and safe development is important to his work and business relationships.

6. NSI A1 is a limited liability company that has served as the applicant and project sponsor for the proposed digital-infrastructure project at 2900 South National Avenue in Springfield, Missouri, including in the City's PREDEV2026-00192 predevelopment process.

7. NSI A1's reputation for competent and responsible development is important to its goodwill and commercial relationships.

8. Defendant Gail Peak Brown is an individual who used a public Facebook account displayed as "Gail Peak Brown" and associated with the profile address facebook.com/gail.peakbaldwin to publish the material displayed as dated July 23 and described below.

JURISDICTION AND VENUE

9. This Court has subject-matter jurisdiction under article V, section 14 of the Missouri Constitution because Plaintiffs assert Missouri tort claims and seek damages within the jurisdiction of the circuit court.

10. Upon information and belief, Brown is a resident of Webster County, Missouri, and may be served at 1150 Westview Place, Marshfield, Missouri 65706.

11. Upon information and belief, Brown first published the challenged Facebook material from Webster County, Missouri, where she resided and recorded the Facility, and venue is therefore proper in this Court under section 508.010.4 and .8, RSMo.

The Facility And Identification Of Plaintiffs

12. Overhue is associated with the digital-infrastructure facility on Rifle Range Road in or near Marshfield, Webster County, Missouri, depicted in Brown’s July 23 publication (the “Facility”).

13. Overhue is also associated with the proposed digital-infrastructure project at 2900 South National Avenue in Springfield, Missouri, which is a separate project from the operating Facility discussed in Brown’s July 23 posts.

14. In the accompanying Facebook thread, Katherine Wiltse expressly named “Trent Overhue” while discussing the Facility’s sound and attributing a commercial-air-conditioning comparison to him.

15. Readers of that discussion could identify Overhue as a person associated with the Facility through Wiltse’s express use of his name in the thread accompanying Brown’s publication.

16. NSI A1’s connection to Overhue and the separate Springfield project was known to persons with whom it pursued business agreements.

17. Upon information and belief, persons familiar with Overhue’s development activities, including persons with whom NSI A1 pursued business agreements, understood Brown’s publications to concern NSI A1’s competence and responsibility as a developer because they knew of its connection to Overhue.

Brown’s July 23 Publications

18. On or about July 23, 2026, the public Facebook account displayed as Gail Peak Brown published a video of the Facility bearing the displayed time of 10:08 p.m. and the following accompanying text:

Would ANYONE like to purchase my property on Rifle Range??? This is NOT OK!!! I just took this video tonight. [face-with-symbols-on-mouth emoji]

19. In a comment accompanying that publication, Brown wrote:

Yes- it is this LOUD!!! Data Centers SUCK!! I'm pleased with the moratorium in the city but this sits right on the outskirts and near the city pool where our children swim! At the city council meeting tonight, I addressed the council and asked the city if soil samples near the data center had been collected, if they were aware of the emissions, if they were doing any additional testing on the water in the city pool, and if any of them had visited Rifle Range? Mayor McNish replied to me that my opportunity to speak was for me to state my opposition or support of the data center and not an opportunity to ask questions. I hate to assume, but I would venture to say that none of these concerns have been addressed. I would also like to note that the city council had a closed session after the meeting to discuss purchase of land within the city. Why would it not be in the best interest of the public to know what land is being purchased with our tax dollars? What reason should this be behind closed doors? [three facial-expression emojis]

20. In a separate public Facebook publication at approximately 5:50 p.m. that day,

Brown wrote:

Please be at city hall tonight at 630!!! Were these emissions anticipated this close to our city pool? This much noise and it appears only one generator is fired up. So much for being the same decibel as a dishwasher- not my dishwasher [rolling-eyes emoji]. Wake up dear friends- please. [alarm-clock emoji]

21. When the 10:08 p.m. publication was captured, Facebook displayed approximately 83 reactions and 28 shares, and the accompanying comments show that third parties received and responded to the publication.

22. The July 23 publications displayed the public-audience globe symbol next to the date or time.

23. Brown's 10:08 p.m. post displayed a nighttime video of the Facility, while the 5:50 p.m. post displayed a separate daytime view of the Facility.

24. In the 10:08 p.m. thread, Brown addressed David Lewis with the words "you have NO idea!! But we DO!!!!," as shown on *Exhibit A*, page A-3.

25. In the same thread, Brown answered Amy Dawson with "MONEY!!!" followed by a money-bag symbol, as shown on *Exhibit A*, page A-3.

26. Readers responded to the recording and discussed noise, nearby homes, and the persons associated with the Facility, including Wiltse's express reference to Overhue.

27. Susan Cardwell responded that there was "Noise pollution, light pollution, air pollution....!" and stated that "We don't need data centers to live," as shown on *Exhibit A*, page A-4.

28. Brown replied to Cardwell that it "seems like something should or could be done," as shown on *Exhibit A*, page A-5.

29. Lisa Hume Watson wrote that "Anyone involved with this should feel horrible for just ruining property values and quality of life, plus so many other things," as shown on *Exhibit A*, page A-5.

30. Joe Ashworth described people having to listen to the sound "all the time," as shown on *Exhibit A*, page A-5, and Chris McClain referred to listening to it "24/7 365 days per year," as shown on *Exhibit A*, page A-6.

31. The comments concerning sound occurring "all the time" and "24/7 365 days per year" reflect the understanding of readers in Brown's thread that the depicted generator operation represented an enduring condition.

32. *Exhibit A* reproduces the 10:08 p.m. post text, its displayed nighttime media, Brown's principal comment and selected replies, Wiltse's identification of Overhue, and additional reader responses captured in the available screenshots.

33. *Exhibit B* reproduces the 5:50 p.m. post text and the visible portion of its accompanying daytime media, which continues beyond the captured view.

34. Plaintiffs seek recovery for the materially false factual implications concerning ordinary generator operation, with Brown's evaluative language alleged as part of the context in

which those implications were communicated. The September 24 camera publication and replies described below provide additional context concerning Brown's representations about the Facility's operations.

35. Liability is asserted for Brown's own publications and replies, and the words of other commenters are alleged to show identification, audience understanding, and reputational effects.

Brown's September 24 Camera Publication And Replies

36. On or about September 24, 2026, the public Facebook page displayed as "Gail Peak-Brown for Webster County Presiding Commissioner" published a video titled "Rifle Range Road Data Center update 9:24/26," concerning the Facility on Rifle Range Road. See Exhibit D, page D-1, and the complete preserved recording supplied separately as Exhibit D - Video.mp4.

37. The preserved Facebook auto-generated captions, at approximately 00:24–00:35, record: "I don't see security here today. Maybe they feel like the flock cameras are keeping them safe but it's right above the cyber truck there."

38. At approximately 00:30–00:44, the captions continue: "Uh so, there's been some questions for some reason about that but that is where they're located".

39. These quotations identify the caption text associated with the video, with the complete saved caption file is reproduced in *Exhibit D*, pages *D-2* through *D-3*.

40. In the context of a site-specific update and the accompanying view of the Facility, a reasonable viewer could understand the reference to "the flock cameras" and their location above the Cybertruck as identifying Flock cameras then in use at the Facility.

41. The word "Maybe" qualifies the proposed explanation for the absence of security personnel; it does not necessarily qualify the identification of the cameras.

42. Plaintiffs allege this site-specific meaning as the implication conveyed by the publication.

43. In a reply to Eugene Sampson Jr. displayed as dated September 24, Brown's page wrote: "Data Centers and Flock cameras usually go hand in hand, but luckily, to my knowledge there haven't been any installed in Marshfield. Hoping to tackle one project at a time." See Exhibit D, pages D-4 and D-7.

44. The captured reply was marked "Author" and "Edited."

45. The entire statement, including its qualification concerning Marshfield, forms part of the publication's context.

46. In the same discussion, Michael Saathoff disputed the claimed local connection, explaining that Flock-camera data could be hosted elsewhere and that this center was not likely to store or process local camera data. See *Exhibit D*, pages D-4 and D-8.

47. In a reply displayed as dated September 25, Brown's page responded: "I'm just speaking about what has happened in our local counties, with the exception of LACLEDE". See *Exhibit D*, pages D-4 and D-8.

48. That exchange concerns the asserted general association.

49. In a reply to Susan L Prewitt displayed as dated September 24, Brown's page wrote: "I am personally not aware of any Flock camera issues in the county. It's their land and they have the right to use it as they see fit. We haven't any signed industrial ordinances at this time. Why wouldn't they be allowed security?" See *Exhibit D*, page D-5.

50. The captured reply was marked "Author" and "Edited."

51. Plaintiffs allege this reply with its qualifications and acknowledgment of the landowner's right to security.

52. NSI A1 does not use Flock cameras. In the same discussion, the account displayed as Trent Overhue stated that the depicted objects were jobsite lights, not Flock cameras; the complete comment is reproduced in *Exhibit D*, page D-6.

53. Plaintiffs dispute the September 24 publication's site-specific implication insofar as it attributes the use of Flock cameras to NSI A1.

54. The identity of any camera system and whether NSI A1 uses that system are objectively verifiable facts.

55. The alleged connection to NSI A1 depends on the audience's knowledge of its connection to Overhue and his development activities, as alleged above.

56. The quoted video captions and Brown's camera-related replies do not expressly name NSI A1.

57. The reasonable-viewer inference alleged here is distinct from an express statement identifying that entity.

58. The September 24 publication and related replies are alleged as additional factual context for Brown's public portrayal of the Facility and the development activities associated with Plaintiffs.

59. Plaintiffs do not allege that the mere lawful use of a security camera is defamatory, or that the quoted statements establish unlawful surveillance or storage of Flock-camera data by NSI A1.

60. The actual reputational and business injuries alleged below remain tied to the publications and effects specifically described there.

The Facility's Actual Generator And Cooling Operations

61. The Facility ordinarily operates entirely on electricity supplied by the utility provider.

62. Continuous operation of the Facility's computing equipment does not require continuous operation of its generators.

63. The on-site generators allow the Facility to continue operating while the utility provider performs annual maintenance on the electrical grid.

64. The generator operation depicted in Brown's July 23, 2026, recordings occurred during system testing.

65. The system testing did not represent the Facility's ordinary use of utility electricity or a schedule of continuous generator operation.

66. The anticipated annual generator run time is a modest number of hours, rather than days or weeks of operation.

67. That anticipated annual use is an operating expectation and does not represent twenty-four-hour generator operation as the Facility's ordinary means of supplying electricity.

68. The sound at issue in Brown's recordings came from a generator operating during system testing.

69. The Facility is situated in a remote area with little surrounding machinery noise.

70. The Facility cools its computing equipment through a closed system in which cooling fluid recirculates.

71. In its ordinary operation, that cooling system does not discharge its circulating cooling water onto the ground or into the nearby public swimming pool.

72. The Facility uses air-cooled chillers to remove heat from its circulating cooling fluid.

73. The Facility's maintenance procedures call for any system fluid removed during service to be collected and safely handled, rather than discharged onto the ground.

74. The Facility's use of air-cooled chillers and recirculating cooling fluid does not entail routine disposal of cooling water onto neighboring land or into the nearby public swimming pool.

The False Factual Implications Of Brown's Publications

75. Read in their full context, Brown's words and accompanying media conveyed that the recorded generator operation, with its attendant sound and exhaust, was a regular, continuing feature of the Facility's ordinary operation.

76. Brown coupled daytime and nighttime depictions of generator operation with an invitation to purchase her nearby property, a dishwasher comparison, references to emissions near the public swimming pool, and an appeal for neighbors to act against the conditions she described.

77. Brown's accompanying text omitted that the generator was operating during system testing and that the Facility ordinarily uses utility electricity.

78. Brown's response to David Lewis that "you have NO idea!! But we DO!!!!" presented her comments as informed by her own experience with the Facility.

79. The alleged false meaning was that generator operation of the kind depicted would ordinarily persist as a condition affecting neighboring properties, rather than occur for the limited purposes of testing and utility maintenance.

80. That meaning was materially false because ordinary operation uses utility electricity and the recorded generator operation occurred during system testing rather than constituting the Facility's continuing means of supplying power.

81. The associated false implication concerning emissions was that ongoing generator exhaust accompanied the Facility's ordinary, continuing operation, rather than being associated with the limited periods when an on-site generator actually ran.

82. Presenting temporary generator testing as an enduring condition materially altered the publications' meaning concerning the Facility's effects on neighboring properties and the competence and responsibility of those identified with its development.

83. Whether the Facility ordinarily uses utility power and whether the depicted generator operation occurred during system testing are objectively verifiable operating facts.

84. The falsity alleged concerns the communicated regularity and duration of generator operation, rather than the existence of generator sound or exhaust during the recorded test.

85. The closed cooling system and air-cooled chillers provide the operating context for Brown's references to soil sampling and pool-water testing, without treating her questions as express assertions that cooling water was discharged into the pool or onto the ground.

Brown's Fault

86. The City of Marshfield's published agenda scheduled a public hearing on a proposed data-center moratorium for July 23, 2026, at 6:30 p.m. at 915 South Marshall Street in Marshfield, Missouri, as shown in *Exhibit C*, page C-1.

87. The same agenda scheduled a closed session concerning the leasing, purchase, or sale of real estate, corresponding to the subject Brown described in her nighttime comment, as shown in *Exhibit C*, page C-2.

88. Upon information and belief, before her nighttime publication on July 23, 2026, Brown attended public meetings held in Marshfield, Webster County, Missouri, at which the Facility's technical specifications, including its air-cooled chillers, closed-loop cooling system, and on-site generators, were discussed.

89. Upon information and belief, Brown acquired knowledge of those technical specifications through her attendance at the Marshfield meetings.

90. Upon information and belief, Brown attended and addressed the City of Marshfield Board of Aldermen at the July 23, 2026, meeting identified in *Exhibit C*, as she described in the comment accompanying her nighttime publication.

91. Brown represented that she had personally recorded the Facility that night and responded to another reader by asserting that "we DO" know about the conditions being discussed.

92. Brown failed to exercise ordinary care in determining and accurately communicating whether the depicted generator operation represented temporary system testing or the Facility's ordinary, continuing method of operation.

93. In presenting the depicted conditions as an enduring feature affecting neighboring property, Brown failed to distinguish the generator's temporary testing function from the Facility's ordinary use of utility electricity.

94. Brown's failure of care concerned the accuracy of the operating conditions conveyed through her publications, and those materially false implications were communicated in the course of her own descriptions of the Facility.

Actual Reputational Injury

95. Readers responded to Brown's publications by condemning the Facility's perceived continuing effects on neighboring residents and the conduct of the persons associated with it.

96. Those responses included Watson's condemnation of "Anyone involved" for "ruining property values and quality of life," Cardwell's accusations of pollution, and Wiltse's express identification of Overhue within the same thread.

97. Upon information and belief, readers who understood the publications to describe continuing generator operation regarded Overhue, identified in the thread as associated with the Facility, as responsible for imposing those ongoing conditions on neighboring residents.

98. As a direct result of Brown's false continuing-operation implications, Overhue was held in lower regard as a developer whose activities were perceived to impose enduring harm on neighboring property and quality of life, as reflected in the public responses described above.

99. Overhue seeks compensation for the resulting injury to his own reputation, distinct from losses belonging to any limited liability company or other separate business entity.

NSI A1's Business Injury

100. Brown's false continuing-operation implications impaired NSI A1's business reputation and goodwill among persons who connected those publications to its development activities and caused those persons to lose confidence in NSI A1's competence and responsible development practices.

101. Upon information and belief, persons considering business agreements with NSI A1 understood Brown's portrayal of the Rifle Range Facility as reflecting the development practices of Overhue and NSI A1 and diminished their confidence in NSI A1 on that basis.

102. As a direct result of that loss of confidence, NSI A1 suffered economic injury through foregone business agreements relating to its digital-infrastructure development activities and the loss of the commercial benefits those agreements would have provided.

103. The resulting injury includes damage to NSI A1's business reputation and goodwill apart from the amount ultimately established for any particular foregone agreement.

104. NSI A1 seeks compensation for injury caused by Brown's publications, with any recovery limited to avoid duplicate compensation for the same injury in its separate action against Katherine Wiltse.

COUNT I - DEFAMATION (TRENTON OVERHUE)

105. Overhue incorporates all preceding paragraphs as though fully set forth herein.

106. Brown published the words and accompanying media set forth above to third parties through her public Facebook account, and third parties read, viewed, and responded to those publications.

107. In the full context alleged in the applicable paragraphs in this petition, Brown's publications communicated materially false factual implications concerning the regularity and duration of generator operation at the Facility.

108. The materially false implications were of and concerning Overhue because he was associated with the identified Facility and was expressly identified by name within its accompanying discussion.

109. Those implications were defamatory because they portrayed Overhue as a developer responsible for ordinary, continuing generator operation and its enduring effects on neighboring residents when the depicted operation occurred during temporary system testing.

110. Brown published those materially false factual implications with at least negligence as to their truth or falsity, as alleged above.

111. Brown's publication directly and proximately caused the actual injury to Overhue's reputation as alleged herein.

WHEREFORE, Plaintiff Trenton Overhue respectfully requests judgment against Defendant Gail Peak Brown for: a) actual and compensatory damages for injury to his reputation in an amount that is fair and reasonable; b) prejudgment and post-judgment interest as permitted by law; c) taxable costs; and d) such other and further relief as the Court deems just and proper.

COUNT II - DEFAMATION (NSI, A.1, LLC)

112. NSI A1 incorporates all preceding paragraphs as though fully set forth herein.

113. Brown published the words and accompanying media set forth above to third parties through her public Facebook account, including readers who understood those publications to concern NSI A1.

114. In the full context alleged in this petition, the publications communicated false factual implications concerning continuing generator operation and the development practices of the persons and business identified with that operation.

115. The materially false implications were of and concerning NSI A1 to readers who knew of its connection to Overhue and understood the publications as describing the conduct and effects of development activities associated with NSI A1.

116. The challenged implications were materially false because the Facility ordinarily operates on utility electricity and the depicted generator operation occurred during system testing.

117. Those implications were defamatory of NSI A1 because they portrayed development activities identified with it as imposing enduring generator noise and exhaust on neighboring residents and thereby impaired confidence in its competence and responsible development practices.

118. Brown published those materially false factual implications with at least negligence as to their truth or falsity, as alleged above.

119. Brown's publications directly and proximately caused the actual injury to NSI A1's business reputation and resulting pecuniary losses alleged in the paragraphs herein.

WHEREFORE, Plaintiff NSI, A.1, LLC respectfully requests judgment against Defendant Gail Peak Brown for: a) actual and compensatory damages for injury to its business reputation, goodwill, and commercial relationships, including economic losses proved to have resulted from Brown's publications, in an amount that is fair and reasonable; b) prejudgment and post-judgment interest as permitted by law; c) taxable costs; and d) such other and further relief as the Court deems just and proper.

JURY TRIAL DEMAND

Plaintiffs demand a trial by jury on all issues so triable.

Respectfully submitted,

THE LAW OFFICE OF CHAD G. MANN



Chad G. Mann, Esq.

Missouri Bar No. 70213

901 E. St. Louis St., Suite 705

Springfield, Missouri 65806

Phone: (417) 842-8679

Fax: (417) 322-6062

law@chadgmanna.com

ATTORNEY FOR PLAINTIFFS

VERIFICATION

STATE OF MISSOURI)

) ss.

COUNTY OF _____)

I, Trenton Overhue, being first duly sworn, state that I have read the foregoing Verified Petition; that the factual allegations stated on my personal knowledge are true and correct; and that the allegations stated on information and belief are believed by me to be true and correct.


Trenton Overhue

SUBSCRIBED AND SWORN TO before me this 2nd day of October, 2026.


Notary Public

